

		In the Civil Action, Petitioner is seeking to establish her fifty percent (50%) ownership of specified assets that were allegedly held in Decedent's name until Respondent interfered. In the instant Probate Action, Petitioner is seeking to establish that Decedent's estate has a fifty percent (50%) ownership in the same assets. Both actions involve the same real and personal properties, and both actions necessitate a determination that these assets belonged to Decedent (as opposed to his brother) and Petitioner. Thus, the court finds that the Civil Action concerns the same subject matter as the 850 Petition. Accordingly, the court must stay the 850 Petition (ROA 512) pursuant to Probate Code section 584. <u>Scope of Abatement of 850 Petition</u> The 850 Petition includes several additional causes of action that are not made pursuant to Section 850. Probate Code section 855 states, "An action brought under this party may include claims, causes of action, or matters that are normally raised in a civil action to the extent that the matters are related factually to the subject matter of a petition filed under this part." Thus, to the extent the additional causes of action in the 850 Petition (ROA 512) are related factually, such causes of action may also be stayed pursuant to Probate Code section 854. Counsel should be prepared to discuss whether all causes of action in the 850 Petition should be abated or only certain causes of action. Alternatively, counsel may request time to further brief such issue.
01421574	Pendleton - Trust	TENTATIVE RULING Case: Pendleton - Trust 01421574 Calendar No.: 2 Date: 07/15/2026 MOTION TO COMPEL FURTHER RESPONSE TO FORM INTERROGATORY 17.1 (ROA 49) Respondent Cynthia L. Russell ("Respondent") moves to compel Petitioner Jacquelyn Pendleton by and through her Power of Attorney Mary E. Mills, ("Petitioner") to further respond to Form Interrogatory 17.1 as it pertains to Requests